

Om Prakash Sinha vs Nishi Sinha on 14 August, 2025

Author: Sujit Narayan Prasad

Bench: Sujit Narayan Prasad, Rajesh Kumar

2025:JHHC:23892-DB

IN THE HIGH COURT OF JHARKHAND AT RANCHI
F.A. No. 193 of 2019

Om Prakash Sinha, son of Sri Birendra Kumar Sinha, aged about 39
years, resident of Plot No.: 668 / 3, Kanti Niwas, Kailash Nagar, Chas,
Police Station and Post Office - Chas, District - Bokaro

... Appellant/Petitioner

Versus

Nishi Sinha, wife of Om Prakash Sinha, daughter of Sri Binay Kumar
Sinha, resident of Purabsarai Mohalla, Police Station and Post Office -
Purabsarai, District Munger in the State of Bihar at present resident of
Section II / C, Quarter No.: 2 / 484, Police Station and Post Office -
Bokaro Steel City, District - Bokaro

... Respondent/Respondent

CORAM : HON'BLE MR. JUSTICE SUJIT NARAYAN PRASAD
HON'BLE MR. JUSTICE RAJESH KUMAR

For the Appellant	: Mr. Pandey Neeraj Rai, Advocate
For the Respondent	: Mr. Ankur Anand, Advocate

CAV on 9th July, 2025
Per Sujit Narayan Prasad, J.:

Pronounced on 14th August, 2025

1. The instant appeal has been filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 29.04.2019 passed by the learned Principal Judge, Family Court, Bokaro in Title (Matrimonial) Suit No. 239 of 2012 whereby and whereunder, the suit for declaring the marriage in between the appellant and the respondent as nullity under Section 12(1)(b) of the Hindu Marriage Act, 1955, has been dismissed.

2. The brief facts of the case, as per the pleading made in the plaint is required to be enumerated herein which reads as under:

3. The marriage of the appellant-husband and respondent-wife was solemnized on 25.04.2012 as per Hindu rites and customs at Bokaro. After marriage, both the parties lived together as husband and wife at Bokaro but they have not been blessed with any issue. It has been stated that the respondent was mentally unsound of mind and this fact was never disclosed to the petitioner at any point of time rather the father of the respondent and her other relatives convinced the family members of the petitioner including the petitioner that the respondent is a sweet, loving and a girl blessed with family values.

4. Further, it has been submitted that the petitioner was never allowed either to speak or meet with the respondent before solemnization of marriage.

5. It is also stated that the petitioner and his family members noticed some abnormal behaviour of the respondent which is unbecoming of a newly married wife, but they ignored the same keeping in mind that the respondent is a young girl of 21st century. Further, the respondent used to remain completely naked in the night and having no sense of wearing clothes and during her stay at her matrimonial home, the respondent used to take medicine at late night.

6. The respondent also refused to enjoy conjugal life with the 2025:JHHC:23892-DB petitioner rather she threatened him by saying that she would call her brother. It is further stated that the respondent lived about 40 days at her matrimonial home and during this period they were convinced that the respondent is mentally ill and thereafter on being informed, father of the respondent came and took the respondent with him requesting the petitioner to remain silent and not to disclose this fact and lastly the petitioner came to know from a Doctor of B.G.H. that the respondent is an old patient of psychiatric, suffering from schizophrenia (F20 patient) which is an incurable disease.

7. It is further stated that the respondent used to go out from the house in the night and on protest, she becomes aggressive, she after taking medicine used to sleep for 10-12 hours. Further, on 17.07.2012, the petitioner brought this fact to the notice of local administration, i.e., local Police Station, D.C., S.P. and D.I.G., Bokaro and when father of the respondent came to know about such approach to the administration, he threatened the petitioner of dire consequences and implicate him in false case as well.

8. In the aforesaid circumstances, the appellant-petitioner had presented the suit against the respondent for declaration of his marriage with the respondent as null and void.

9. The learned Principal Judge after hearing the parties and appreciating the evidence available on record as also the testimonies 2025:JHHC:23892-DB of the witnesses, has dismissed the suit, against which the present first appeal has been preferred.

Argument of the learned counsel for the appellant/husband:

10. The following grounds have been taken for assailing the impugned judgement:

(i) The learned Family Judge has passed the judgment without appreciation of the testimony available on record.

(ii) The learned Family Judge has further erred in passing the judgment by discarding the report of the doctor/psychologist of the Bokaro General Hospital, rather by giving weightage to the doctor of the RINPAS, Ranchi.

(iii) It has been contented that if the entire testimony adduced on behalf of the husband side will be taken into consideration, it would be evident that the case has fully been proved so far as the issue to establish the case under Section 12(1)(b) of the Hindu Marriage Act, 1955 is concerned.

(iv) It has been contended that even accepting that the doctor has not certified regarding the mental unsoundness, rather accepted no case of insanity, but even then the element of fraud is there, reason being that whatever prescription has been exhibited on behalf of the appellant-husband, is prior to solemnization of marriage in between the appellant and the respondent, but the aforesaid fact about the mental illness 2025:JHHC:23892-DB has been suppressed, hence the case may also be considered under the provision of Section 12(1)(c) of the Hindu Marriage Act, 1955.

11. Learned counsel, based upon the aforesaid ground, has submitted that the impugned judgment therefore suffers from error. Submissions advanced by the learned counsel for the respondent- wife:

12. While on the other hand, learned counsel appearing for the respondent wife has taken the following ground while defending the impugned judgment:

(i) There is no infirmity in the impugned judgment, since, whatever the report has been marked as an exhibit produced on behalf of the Psychologist working in the Bokaro General Hospital, the same cannot be allowed to prevail upon the certificate given by the doctor and Psychologist, based upon the psychometry test of the RINPAS, Ranchi wherein it has been declared that the respondent was mentally fit.

(ii) The contention has been raised that the learned Family Judge has taken into consideration the reports of the doctor of the RINPAS, based upon the psychometry test, wherein no issue of mental disorder has been found to be there.

(iii) The learned Family Judge therefore is correct in relying 2025:JHHC:23892-DB upon the certificate, based upon the psychometry test of the RINPAS, which is the parameter to assess the mental fitness of a human being and while doing so, it cannot be said that the learned Family Judge has committed any error.

(iv) The contention has been raised that the argument which has been advanced on behalf of the appellant-husband that the consideration may also be made on the issue of availability of ground as provided under Section 12(1)(c) is concerned, it has been contented that the same cannot be allowed to be accepted, reason being that the appellant-

husband has made an application under Order 6 Rule 17 of the CPC for insertion of a new issue pertaining to applicability of the ground as available under Section 12(1)(c) of Hindu Marriage Act, 1955. But the said application filed under Order 6 Rule 17 was rejected vide order dated 20.02.2018, against which the appellant- husband has come to this Court by invoking the jurisdiction conferred under Article 227 of the Constitution of India.

(v) But this Court vide order dated 05.02.2019 passed in W.P.(C) 1323 of 2018 has declined to interfere with the order passed by the learned Family Court dated 20.02.2018, and has rejected the amendment sought for by filing application under Order 6 Rule 17 of the CPC.

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(vi) The argument therefore has been advanced that once the factum of insertion of new issue has already been rejected and attained its finality, hence at this stage again the same cannot be allowed to be taken into consideration.

13. The learned counsel for the respondent wife, based upon the aforesaid ground, has submitted that there is no error in the impugned judgment, rather, judgment has been passed by appreciating the material came in the evidence as also the document.

Analysis:

14. We have heard the learned counsel for the parties and gone through the findings recorded by the learned trial Court in the impugned judgment.

15. The brief facts of the case of the petitioner as per the record is that the petitioner/appellant has filed matrimonial suit being Title (Matrimonial) Suit No.239 of 2012 before the Court of Principal Judge, Family Court, Bokaro praying therein for declaration of the marriage of the petitioner with the respondent as nullity under Section 12(1)(b) of Hindu Marriage Act, 1955 wherein it has been alleged that respondent wife was suffering from mental disease of Schizophrenia prior to the marriage but this fact has been concealed by the parents of the respondent and before marriage they did not allow him to talk with the respondent.

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16. Accordingly, the learned Family Court had issued notice to respondent wife consequently she had appeared and had filed written statement wherein she had stated that the allegations as levelled against her and her family members are not true and she is mentally fit and she has no mental

issues. In support of her contention, she had furnished various documents including the certificate based on the Psychometry test issued by the Medical Superintendent RINPASS.

17. Learned Family Judge, taking into consideration of the pleading of the parties has formulated the following issues:

"i. Whether this suit is maintainable in its present form? ii. Whether there is any valid cause of action of this suit? iii. Whether the respondent is suffering incurable mental disease of schizophrenia?

iv. Whether the plaintiff and his family members subjected the respondent to a cruelty for demand of dowry of Rs.4,00,000/- and a Alto Car?"

v. Whether the plaintiff is entitled for the relief as prayed for?

18. First of all, the learned Family Judge has taken into consideration the issue no.(iii) and (iv). The learned Family Judge has considered the evidence adduced on behalf of the parties.

19. This Court in order to appreciate the aforesaid rival submissions before entering into the legality and propriety of the impugned judgment needs to discuss herein the relevant part of the evidences adduced on behalf of the parties wherein the element of unsoundness of mind has been shown by the appellant-husband.

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20. During the trial, six witnesses have been examined on behalf of the appellant-husband who himself has been examined PW6.

21. On the other hand, the respondent-wife has also examined five witnesses in support of her contention including herself as RW3.

22. In addition, thereto, both the parties have filed several documents in support of their contention which have been marked as Exhibit.

23. PW-1 Kanchan Sinha (Sister) has supported the case of the petitioner in her examination-in-chief. During cross-examination, she has stated that at the time of marriage the respondent already had a diploma in Computer Science and she was inter passed. She has stated that while the respondent was staying in her matrimonial home, she had appeared in B.A. Examination. She has stated that before marriage they have gone to the house of the respondent once and she has seen the respondent prior to the marriage and also talked with her.

24. PW-2 (Mother of the petitioner/appellant) has also supported the case of the petitioner in her examination-in-chief. During cross- examination, she has stated that before marriage, an engagement party was held and at that time the respondent was studying in B.A. She has stated that

after marriage the respondent lived 40 days in her house. She has stated that this marriage was held after formal talking of marriage between her, her husband and the father of the respondent. She has stated that the respondent has 2025:JHHC:23892-DB lodged C.P. Case No. 1118/2012 against them under cruelty and Dowry Prohibition Act.

25. PW-3 Dr Subodh Kumar, Medical Psychiatrist at BGH. He has stated that on 28.08.2012 he has taken test of the respondent and he has also stated on perusal of medical book he has seen that the respondent was previously treated by Dr T. Sudhir saying that she is suffering from Schizophrenia (F-20). He has also stated that he has psychologically tested the respondent and found that she is underlying psychotropic features and then on 18.09.2012 he called her for her marital counseling. He has also stated that on 18.09.2012 the respondent came with her husband and then he found that there was a grievous tension between the husband and wife and then he had counseled both of them for better and healthy relation. He has proved the OPD prescription, which is marked Exhibit-1. He has also stated that he is not the Psychiatrist, he is only clinical psychologist. He has also stated that generally Schizophrenia patient cannot complete higher studies.

26. PW-4 Dr K.N. Thakur, Director and H.O.D. of Psychiatry, Department of B.G.H. He has also stated that on 14.08.2012 he had treated the respondent and the respondent told him that she was previously treated by Dr T. Sudhir and Dr Dasgupta from 2004 to 2011 for Schizophrenia. He has also stated that he has taken the tests of the respondent and prescribed medicines and during test he found that the respondent was suffering from old Schizophrenia 2025:JHHC:23892-DB (F-20). In his examination-in-chief OPD Ticket and his writing on his signature is marked Exhibit-2 and entry in medical book dated 23.05.2013 is marked Exhibit-3.

During cross-examination, he has stated that Schizophrenia patient can pass graduation examination with high marks. He has also stated that Rosac test and TAT also used in Schizophrenia by Psychiatrist but he has not mentioned in the OPD Ticket about this test.

27. PW-5 Dr T. Sudhir, has stated that he is Director in the Psychiatric Department in BGH. He has also stated that on 31.01.2010 he has treated the respondent and after test he found the respondent was suffering from Schizophrenia and then he has prescribed medicines. He has also stated that on 16.05.2012 he again treated the respondent as a outdoor patient.

28. During his cross-examination, he has stated that two medicines Fluoxamine (100 mg.) and another medicine Amisumisulprid (500 mg.) was prescribed and these were used in anti-psychotropic and anti-depression. He has also stated that Schizophrenia patient had a hallucination and delusion and also there should be symptom of deorganized but this symptom has not been mentioned in the prescription. He has also stated that after treatment all these symptoms can be cured. He was again recalled and on recall he has proved the medical card and two OPD slips of 2025:JHHC:23892-DB the respondent which were marked Exhibits.

29. PW-6 (petitioner) has stated that he has filed this suit for declaration of his marriage with the respondent as illegal, null and void. He has stated that his marriage with the respondent was solemnized on 25.04.2012 at Bokaro according to Hindu rites and custom but they have not been

blessed with any issue. He has stated that after marriage the respondent came to his father's house on 26.04.2012 and from the day of marriage, they noticed abnormal behaviour of the respondent as she did not discharge her marital obligations.

30. He has further stated that after marriage whenever he tried to establish marital relation with the respondent, the respondent used to cry and threatened to call her brother. He has stated that after marriage he has seen the respondent to take some medicine in the late night from a box. He has stated that usually in the night the respondent used to come out from room without clothes and started walking. Thereafter he and his family members called the parents of the respondent and asked about such abnormal behaviour of the respondent but they did not reply rather they returned by giving some medicine to the respondent. He has stated that abnormal behaviour of the respondent became increased day to day and sometimes she did not sleep whole night and used to come out from the house without informing anyone and if anyone tried to object, she became angry and abused in filthy languages 2025:JHHC:23892-DB and she also used to talk with an imaginary person while walking, she also used to tell to establish physical relationship with any imaginary person.

31. He has stated that he and his parents many times asked the respondent about her such abnormal behaviour and asked about taking of medicine and lastly father of the respondent told that treatment of the respondent was going on since previously and when he demanded the paper of the treatment of the respondent, then medical card of the respondent of BGH was given to him and also stated that previously medical card was already deposited in BGH. He has stated that father of the respondent is a permanent employee of BSL, so medical card was issued in the name of his children.

32. He has stated that on 16.05.2012 he got the respondent treated by Dr Kusum Kumari, Gynecologist, who has prescribed psychiatric medicine and also referred to a Psychiatric. Thereafter, he got the respondent treated to Dr T.Sudhir, Psychiatric of BGH and the Doctor said that the respondent was suffering from Schizophrenia (F-20) and the respondent was under treatment for many years in BGH. He has stated that again on 23.05.2013 he taken the respondent to Dr T. Sudhir at BGH and after tests, he has prescribed medicines which was taken by the respondent.

33. He has further stated that on 14.08.2012 he has also got treated by 2025:JHHC:23892-DB Dr K.N.Thakur of BGH, at that time father of the respondent was also present and the Doctor told him that the respondent was suffering from Schizophrenia (F-20) and he has prescribed some medicines and the respondent used to take that medicine. He has stated that on that day Dr K.N.Thakur referred the respondent to Dr Subodh Kumar, Psychologist of BGH for test and on 28.08.2012 the respondent was treated by Dr Subodh Kumar and after test, Doctor said that the respondent is suffering from Schizophrenia. He has stated that all the tests were held in presence of father of the respondent and again the respondent was also treated to Dr Subodh Kumar on 18.09.2012 in presence of father of the respondent. He has stated that Dr T. Sudhir, Psychiatrist and Dr K.N.Thakur, H.O.D. of Psychiatry and Dr Subodh Kumar had diagnosed the respondent is suffering from mental disease of Schizophrenia and they have told that the respondent was suffering from mental disease previously.

34. He has also stated that he had asked the parents of the respondent the reason for concealing the fact that the respondent was suffering from mental disorder but they did not reply. He has stated that after marriage the respondent lived 40 days at her matrimonial home but her behaviour was not normal and she did not establish marital relation. He has stated that the respondent went to her maika and since then she is living at her maika. He has stated that in the month of February 2014 during cleaning of 2025:JHHC:23892-DB house, he got a diary in which it was written by the respondent that she is suffering from mental disease and taking medicines for depression.

35. He has stated that the respondent was suffering from mental disease of Schizophrenia prior to the marriage but this fact has been concealed by the parents of the respondent and before marriage they did not allow him to talk with the respondent by saying that it is against the discipline of their family. He has stated that due to the fact that the respondent is suffering from Schizophrenia, so it is not possible to continue their conjugal rights and marriage was solemnized by concealing this fact.

36. During his cross-examination, he has stated that before marriage when he went to see the respondent, then his mother was also with him but he did not talk with the respondent. He has stated that 8-10 days before engagement, he has seen the respondent. He has stated that at present he is a Teacher in Kendriya Vidyalaya, Maithon, for two years. He has stated that he has not got treated the respondent on medical card. He has stated that after one month of ring ceremony their marriage was solemnized.

37. In para-53 of his cross-examination, he has stated that while the respondent was living in his house for 40 days and during this period, the respondent appeared on examination on the basis of her educational capability. He has stated that his sister Kanchan 2025:JHHC:23892-DB Sinha has also lodged a case against her husband for divorce on the ground of physical and mental torture. He has stated that he has not remember in which year the diary was written. He has stated that the respondent has lodged C.P.Case No. 1118/2012 against him and his family members.

38. He has stated that he has taken the respondent two days for her examination. He has stated that the respondent is having self- study. There is also a suggestion of the respondent that due to family relationship Dr T. Sudhir and Dr K.N.Thakur have given false medical paper, on which he denied that suggestion. He has denied the suggestion of the respondent that he demanded Rs.4,00,000/- and due to non-fulfillment of the said demand, he tried to declare the respondent to be of mentally ill. This suggestion was also denied by the petitioner. It is the suggestion of the respondent that by giving duress and pressure, he forced the respondent to write in the diary, which he denied.

39. Five witnesses have been examined on behalf of the respondent wife including the respondent herself.

40. RW-1 (Mother of the respondent wife) has supported the case of the respondent in her examination-in-chief. In her examination-in- chief, she has proved the report of Dr Ashok Kumar Nag of RINPAS, Ranchi and also miscellaneous receipts which are Exhibits- A, B and also produced the photocopy of all the educational degrees of 2025:JHHC:23892-DB the respondent.

41. During cross-examination, she has stated that her daughter has also taken computer science course. She has also stated that previously family members of the petitioner called them, so they have solemnized marriage of her daughter with the petitioner. She has also stated that her daughter passed M.A. She has also stated that first of all they have filed a criminal case against the petitioner and his family members and thereafter this case has been filed by the petitioner.

42. RW-2 (Father) has also supported the case of the respondent in his examination-in-chief. During cross-examination, he has stated that he is a retired employee of BSL. He denied in his cross-examination that his daughter was suffering from Schizophrenia before marriage.

43. RW-3 (respondent) has stated that her marriage with the petitioner was solemnized on 25.04.2012 as per Hindu rites and custom at Bokaro, in which her father had given Rs. 8,00,000/- ornaments and other household articles. She has also stated that her engagement with the petitioner was held at Bokaro in Hotel Aditya International on 29.01.2012, four months before marriage, in which gold ring was given to the petitioner and in that engagement 86 persons from the petitioner side participated. She has also stated that after engagement petitioner always used to 2025:JHHC:23892-DB talk with her and taken her in walking outside thrice where they talked in a congenial atmosphere.

44. She has also stated that after marriage she went to her matrimonial home but the petitioner since first night, on the instigation of her mother-in-law, started abusing and assaulting her. She has also stated that her husband, parents in-law and Nanad started demanding Rs.4,00,000/- and a Car. She has also stated that she herself did all domestic work at her matrimonial home. She has also stated that at the time of marriage, she was student of Part-III of B.A. and while living at her matrimonial home, she appeared in B.A. "Part-III" examination.

45. She has also stated that when she had shown her inability to fulfill the demand of dowry, the petitioner started torturing her physically and mentally and after examination her mother-in-law and Nanad kept her in a room and forced her to sleep on the floor and they have also stated about the character of her. She has also stated that her mother had given Rs.25,000/- to her parents in-law but their behaviour did not change. She has also stated that on 07.12.2015 with the help of her Nanad, her mother-in-law has given her a tablet for sleeping and after taking it, she became unconscious and thereafter the petitioner and his family members has taken a false prescription of her treatment and her parents in-law threatened that they have taken divorce of their daughter Kanchan Sinha from their son-in-law by declaring him mad, so they 2025:JHHC:23892-DB also did the same thing against her.

46. She has also stated that they administered wrong medicine to her after assaulting her daily. She has also stated that on 04.10.2012 the petitioner and his parents and sister drove her out from her matrimonial home after assaulting her and thereafter she came her parents' home where the petitioner assured her that he will keep her in a separate house but on 02.12.2012 the petitioner along with four others came and forcibly taken her signature on a blank paper and in a non-judicial stamp paper by putting her in duress and also taken a medical card. She has also stated that she complained to the Mahila Thana but no action was taken and thereafter she had filed is C.P.Case No.

1118/2012 which is now pending.

47. She has also stated that before marriage, she has passed the State Board of Technical Education Examination in the year 2007. She has also stated that in the year 2012 she has passed her B.A. Examination and in the year 2016 she has passed M.A. Examination from Nalanda Open University and then she did B.Ed. course from Vinoba Bhawe University. She has also stated that her husband has falsely lodged this case by declaring her suffering from mental disease. She has also stated that when on this basis her husband did not take her in Bidai, then her parents got her treated at RINPASS, Ranchi, where after entire tests, it has been reported that she is fit. She has also stated that due to conspiracy 2025:JHHC:23892-DB this case was filed by the petitioner and she was ousted from her matrimonial home due to non-fulfillment of demand of dowry.

48. During her cross-examination, she has stated that all the negatives of the photographs are in the Studio. In para-41 she has stated that her father wanted to give Rs.8,00,000/- through cheque but they have taken the money in cash. She has also stated that in the first night of marriage the petitioner demanded a Car of Rs.4,00,000/-. She has also stated that she is mentally fit like a normal person. She has also stated that she has stated all the occurrences to her father but her father told her to tolerate everything and everything will be all right, after few days. She has also stated that her mental treatment was not done at BGH. She has also stated that the entry in the diary was in her hand writing and signature.

49. RW-4 Dr Ashok Kumar Nag, RINPAS, Ranchi. He has proved the report marked Exhibit-A and also miscellaneous receipts of the RINPAS, Ranchi, marked Exhibit-B and also proved the photocopy of physiological test which is marked Y/60. He has stated that he has prepared his certificate on the basis of psychological test Y/60.

50. RW-5 Masroor Jahan, he is a Clinical Psychologist at RINPAS, Ranchi. He has also proved the miscellaneous receipts, which is marked Y/61 and also proved the photocopy of certified copy of Medical Superintendent, RINPAS, Ranchi, which is marked Y/62 and also proved the application of the respondent for demanding 2025:JHHC:23892-DB the test report which is marked Y/63, he has also proved the case record of patient, which is marked Y/64 and also the psychometry report of Dr A.K.Nag, which is as marked Y/65.

51. Thus, from the aforesaid testimonies of the witnesses it is evident that although the PW-1 (Sister) has supported the case of the petitioner in her examination-in-chief but she has stated that before marriage she met with the respondent and talked with her. PW-2 (Mother) has also supported the case of the petitioner in her examination-in-chief but she had stated that engagement party was held and at that time the respondent was studying in B.A.

52. It is evident from the testimony of PW-3 Dr Subodh Kumar that he is not the Psychiatrist; he is only clinical psychologist. He has also stated that generally Schizophrenia patient cannot complete higher studies. Further PW-4 Dr K.N.Thakur, has also stated that rosac test and TAT also used in Schizophrenia by Psychiatrist but he has not mentioned in the OPD Ticket about this test and his statement from PW-3, Medical Psychologist is different because the PW-3 has stated that

Schizophrenia patient cannot get the higher education whereas P.W.- 4 has stated that Schizophrenia patient can pass graduation with higher marks. PW-5 Dr T. Sudhir has stated that he did not find in the prescription about symptoms of Schizophrenia and these symptoms can be cured by treatment so according to this witness the alleged disease of the respondent is curable.

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53. Further, RW-1 (Mother) has stated that first of all they have filed a criminal case against the petitioner and his family members and thereafter this case has been filed by the petitioner. RW-2 (Father) has denied in his cross-examination that his daughter was suffering from Schizophrenia before marriage.

54. Further from entire record it is evident that no where it has come that the respondent was incapable of giving valid consent for marriage and it has also not come in his evidence that the respondent is unfit for marriage and procreation of children.

55. The observation of the learned Family Court that the respondent has been cross-examined at length and she has replied in a rational way during her entire cross-examination. It has further been observed that an abnormal person cannot be stood in the cross- examination, so from her cross-examination, it does not appear that she is suffering from mental illness.

56. Further, the learned Family Judge, on appreciation of the evidence adduced on behalf of the parties and by weighing comparatively, has come to the conclusive finding by giving weightage to the certificate issued by the doctor of the RINPAS which is based upon the psychometry report, has dismissed the suit as preferred by the appellant/husband.

57. On perusal of the facts and legal evidence on record and hearing the rival legal contentions urged by both the parties, the points 2025:JHHC:23892-DB that would arise for consideration of this Court are:

(i) Whether the respondent is suffering from a serious mental disorder i.e. schizophrenia or incurable unsoundness of mind.

(ii) Whether the learned Family Court has correctly reappreciated the facts pleaded and evidence on record while dismissing the application filed by the appellant under Section 12(1)(b) of the Act 1955?

58. Before answering the aforesaid issues, it would be apt to refer herein the Section 5 and Section 12 of the Act 1955, which reads as follows:

"5. Conditions for a Hindu marriage.--A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:--

(i) neither party has a spouse living at the time of the marriage; 1 [(ii) at the time of the marriage, neither party--

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity 1 ***;]

(iii) the bridegroom has completed the age of 2 [twenty-one years] and the bride, the age of 3 [eighteen years] at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

12. Voidable marriages.--(1) Any marriage solemnised, whether before or after the commencement of this Act, shall be 2025:JHHC:23892-DB voidable and may be annulled by a decree of nullity on any of the following grounds, namely:--

[(a) that the marriage has not been consummated owing to the impotence of the respondent; or]

(b) that the marriage is in contravention of the condition specified in clause (ii) of section 5; or

(c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner 4 [was required under section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978 (2 of 1978)], the consent of such guardian was obtained by force 5 [or by fraud as to the nature of the ceremony or as to any material fact or circumstances concerning the respondent]; or

(d) that the respondent was at the time of the marriage pregnant by some person other than the petitioner.

(2) Notwithstanding anything contained in sub-section (1), no petition for annulling a marriage--

(a) on the ground specified in clause (c) of sub-section (1) shall be entertained if--

(i) the petition is presented more than one year after the force had ceased to operate or, as the case may be, the fraud had been discovered; or

(ii) the petitioner has, with his or her full consent, lived with the other party to the marriage as husband or wife after the force had ceased to operate or, as the case may be, the fraud had been discovered;

(b) on the ground specified in clause (d) of sub-section (1) shall be entertained unless the court is satisfied--

(i) that the petitioner was at the time of the marriage ignorant of the facts alleged;

(ii) that proceedings have been instituted in the case of a marriage solemnised before the commencement of this Act within one year of such commencement and in the case of marriages solemnised after such commencement within one year from the date of the marriage; and

(iii) that marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of the existence of 6 [the said ground]."

59. Thus, Section 5 of the Act 1955 specifies conditions on which marriage may be solemnized between two Hindus. Contravention of Conditions (i), (iv) and (v) of Section 5 would make marriage void. Violation of Conditions (ii) or (iii) of Section 5 would not 2025:JHHC:23892-DB makemarriage null and void. It makes marriage voidable at the option of an under-aged party or who could not have validly consented to marriage.

60. Further it is evident from Section 12(1) (b) of the Act 1955 any marriage solemnised, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity if the said marriage is in contravention of the condition specified in clause (ii) of Section 5. It needs to refer herein that there are three conditions has been stipulated in the clause (ii) of Section 5 i.e. at the time of the marriage, neither party-

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity

61. It is settled position of law that A marriage can be solemnized between two Hindus if the conditions indicated in Section 5 were fulfilled. The expression 'may' used in Section 5 is not directory, but mandatory and non-fulfilment thereof would not permit a marriage under the Act

between two Hindus, reference in this regard be made to the Judgment rendered by the Hon'ble Apex Court in the case of Gullipilli Sowria Raj v. Bandaru Pavani, 2025:JHHC:23892-DB (2009) 1 SCC 714.

62. It requires to refer herein the settled position of law that an objection to a marriage on the ground of mental incapacity must depend on a question of degree of the defect in order to rebut the validity of a marriage. The onus of bringing a case under this clause lies heavily on the petitioner who seeks annulment of the marriage on the ground of unsoundness of mind or mental disorder, reference in this regard be made to the judgment rendered by the Hon'ble Apex Court in the case of R. Lakshmi Narayan v. Santhi, (2001) 4 SCC 688.

63. It needs to refer herein that 'Schiz-o-phre-nia' has been explained in the Steadman's Medical Dictionary, 27th Edition at page 1600 as follows:

"A common type of psychosis, characterized by abnormalities in perception, content of thought and thought process (hallucinations and delusions) and by extensive withdrawal of interest from other people and the outside world, with extensive focussing on one's own mental life. The 'split' personality of Schizophrenia, in which individual psychic components or functions split off and become autonomous is properly but erroneously identified with multiple personality in which two or more relatively complete personalities dominate by turns, the psychic life of an individual."

"Early symptoms include shortened attention span, memory deficits and diminished ability to make decisions. Most patients become ill before age 40. Psychotic symptoms persist for months and years and there is life long risk of elapse."

"Virtually all patients display impoverished thought content, social withdrawal and impairment of occupational functioning and even with intensive psychotherapy and drug treatment, about 25% require custodial or instrumental care. Although some persons with Schizophrenia become assassins or mass murderers, the vast majority pose no threat to society, about 10% commit suicide."

64. Concise Oxford Dictionary, 10th Edition defines the expression 2025:JHHC:23892-DB Schizophrenia as follows:

"A long term mental disorder of a type involving breakdown in the relation between thought, emotion and behaviour, leading to faulty perception, inappropriate action and feelings and withdrawal from reality into fantasy and illusion."

65. Further as per the Readers Digest Universal Dictionary, 1988 Edition defines Schizophrenia as follows:

"Any group of psychotic conditions, characterized by withdrawal from reality and accompanied by highly variable and affective behavioural and intellectual

disturbances. New Latin 'split mind' - schizophrenia."

66. It needs to refer herein that in *Ram Narain v. Rameshwari*, A.I.R. 1988 S.C. 2260, the Hon'ble Supreme Court held that mere branding of spouse as Schizophrenic is not sufficient. The degree of mental disorder must be proved to be such that the petitioning spouse cannot reasonably be expected to live with the other. It is worthwhile to quote the observations of their lordships in this context:

"The context in which the idea of 'unsoundness of mind' and 'mental disorder' occur in these sections as grounds for dissolution of marriage require the assessment of the degree of the 'mental disorder'. Its degree must be such as that the spouse seeking the relief cannot reasonably be expected to live with the other. All mental abnormalities are not recognised as grounds for grant of decree. If the mere existence of any degree of mental abnormality could justify dissolution of marriage, few marriages would indeed survive in law, 'Schizophrenia, it is true, is said to be a difficult mental affliction. It is said to be insidious in its onset and has hereditary pre-disposition factor. It is characterized by the shallowness of emotions and is marked by a detachment from reality. In paranoid status, the victim responds even to fleeting expressions of disapproval from others by disproportionate reactions generated by hallucinations of persecution. Even well meant acts of kindness and of expression of sympathy appear to the victim as insidious traps. In its worst manifestation, this illness produces a crude wrench from reality and brings about lowering of the higher mental functions. But, the personality disintegration that characterizes this illness may be of varying degree. Not all Schizophrenics are characterized by the same intensity of the disease. The mere branding of a person as a Schizophrenic, therefore, will not suffice. For the purpose of Section 2025:JHHC:23892-DB 13(1)(iii) of the Act, Schizophrenia is what Schizophrenia does. Applying the above ratio, we find that mere characterization of the wife as a Schizophrenia patient is devoid of any substance."

(emphasis added).

67. It requires to refer herein that Psychiatrist is an expert but in view of provision of section 45 of the Evidence Act, it is up to the Court to either rely on the opinion or to refuse to do so. Further, he being a witness, his credibility can be impeached like the credibility of any other witnesses and his veracity can be tested as provided in section 146 and other provisions of Evidence Act. As psychiatrist is expected to give evidence on the basis of the examination of the patient done by him, the symptoms noted by him, the treatment and the follow up treatment given by him and the record created by him needs to be considered both for corroboration and contradiction purpose. In such a case the evidence of other witnesses or the circumstances which relates to the behaviour of the respondent can be considered by the Court as that can help strengthening the opinion or create probability that the opinion has no justification and it is weak.

68. The Hon'ble Apex Court in the case of Kollam Chandra Sekhar v. Kollam Padma Latha, (2014) 1 SCC 225 has categorically observed that the ideas of unsoundness of 'mind' and 'mental disorder' occur in the section as grounds for dissolution of a marriage, require the assessment of the degree of the 'mental disorder'. Its degree must be such that the spouse seeking relief cannot reasonably be expected to live with the other. All mental 2025:JHHC:23892-DB abnormalities are not recognised as grounds for grant of decree. If the mere existence of any degree of mental abnormality could justify dissolution of a marriage few marriages would, indeed, survive in law. For ready reference the relevant paragraph of the aforesaid judgment is being quoted as under:

"22. The relevant portions with regard to "unsoundness of mind" and "mental disorder" from the case referred to supra are extracted hereunder: (Ram Narain Gupta case [(1988) 4 SCC 247], SCC pp. 254- 56, paras 20-24) "20. The context in which the ideas of unsoundness of 'mind' and 'mental disorder' occur in the section as grounds for dissolution of a marriage, require the assessment of the degree of the 'mental disorder'. Its degree must be such that the spouse seeking relief cannot reasonably be expected to live with the other. All mental abnormalities are not recognised as grounds for grant of decree. If the mere existence of any degree of mental abnormality could justify dissolution of a marriage few marriages would, indeed, survive in law.

21. The answer to the apparently simple-and perhaps misleading- question as to 'who is normal?' runs inevitably into philosophical thickets of the concept of mental normalcy and as involved therein, of the "mind" itself. These concepts of 'mind', 'mental phenomena, etc. are more known than understood and the theories of 'mind' and 'mentation' do not indicate any internal consistency, let alone validity, of their basic ideas. Theories of 'mind' with cognate ideas of 'perception' and 'consciousness' encompass a wide range of thoughts, more ontological than epistemological. Theories of mental phenomena are diverse and include the dualist concept-shared by Descartes and Sigmund Freud of the separateness of the existence of the physical or the material world as distinguished from the non- material mental world with its existence only spatially and not temporally. There is, again, the theory which stresses the neurological basis of the 'mental phenomenon' by asserting the functional correlation of the neuronal arrangements of the brain with mental phenomena. The 'behaviourist tradition, on the other hand, interprets all reference to mind as 'constructs' out of behaviour. 'Functionalism, however, seems to assert that mind is the logical or functional state of physical systems. But all theories seem to recognise, in varying degrees, that the psychometric control over the mind operates at a level not yet fully taught to science. When a person is oppressed by intense and seemingly insoluble moral dilemmas, or when grief of loss of dear ones etch away all the bright colours of life, or where a broken marriage brings with it the loss of emotional security, what standards of normalcy of behaviour could be formulated and applied? The arcane infallibility of science has not fully pervaded the study of the non-material dimensions of 'being'.

22. Speaking of the indisposition of science towards this study, a learned author says:

2025:JHHC:23892-DB '... we have inherited cultural resistance to treating the conscious mind as a biological phenomenon like any other. This goes back to Descartes in the seventeenth century. Descartes divided the world into two kinds of substances: mental substances and physical substances. Physical substances were the proper domain of science and mental substances were the property of religion. Something of an acceptance of this division exists even to the present day. So, for example, consciousness and subjectivity are often regarded as unsuitable topics for science. And this reluctance to deal with consciousness and subjectivity is part of a persistent objectifying tendency. People think science must be about objectively observable phenomena. On occasions when I have lectured to audiences of biologists and neurophysiologists, I have found many of them very reluctant to treat the mind in general and consciousness in particular as a proper domain of scientific investigation.

... the use of the noun 'mind' is dangerously inhabited by the ghosts of old philosophical theories. It is very difficult to resist the idea that the mind is a kind of a thing, or at least an arena, or at least some kind of black box in which all of these mental processes occur.' [John R. Searle, *Minds, Brains and Science*-Reith Lectures (Harvard University Press, 1984), pp. 10 and 11.]

23. Lord Wilberforce, referring to the psychological basis of physical illness said that the area of ignorance of the body-mind relation expand with that of knowledge. In *McLoughlin v. O'Brian* [(1983) 1 AC 410 (1982) 2 WLR 982: (1982) 2 All ER 298 (HL)], the learned Lord said, though in a different context: (AC p. 418 B: All ER p. 301) '... Whatever is unknown about the mind-body relationship (and the area of ignorance seems to expand with that of knowledge), it is now accepted by medical science that recognisable and severe physical damage to the human body and system may be caused by the impact, through the senses, of external events on the mind. There may thus be produced what is as identifiable an illness as any that may be caused by direct physical impact. It is safe to say that this, in general terms, is understood by the ordinary man or woman who is hypothesised by the courts....'

24. But the illnesses that are called 'mental' are kept distinguished from those that ail the 'body' in a fundamental way. In *Philosophy and Medicine*, Vol. 5 at p. X the learned editor refers to what distinguishes the two qualitatively:

'Undoubtedly, mental illness is so disvalued because it strikes at the very roots of our personhood. It visits us with uncontrollable fears, obsessions, compulsions and anxieties....

... This is captured in part by the language we use in describing the mentally ill. One is an hysteric, is a neurotic, is an obsessive, is a schizophrenic, is a manic-depressive.

On the other hand one has heartdisease, has cancer, has theflu, hos malaria, has smallpo X..."

(emphasis in original) The principle laid down by this Court in the aforesaid case with all fours is applicable to the fact situation on hand wherein this Court has rightly referred to Section 13(1)(iii) of the Act and Explanation to the said clause and made certain pertinent observations regarding 2025:JHHC:23892-DB "unsound mind" or "mental disorder" and the application of the same as grounds for dissolution of marriage. This Court cautioned that Section 13(1)(iff) of the Act does not make a mere existence of a mental disorder of any degree sufficient in law to justify the dissolution of marriage.

35. In the English case of *Whysall v. Whysall* [1960 P 52: (1959) 3 WLR 592: (1959) 3 All ER 389], it was held that a spouse is "incurably of unsound mind" if he or she is of such mental incapacity as to make normal married life impossible and there is no prospect of any improvement in mental health, which would make this possible in future. The High Court of Judicature of Calcutta, in *Pramatha Kumar Maity v. Ashima Maity* [AIR 1991 Cal 123] has held that mental disorder of the wife, even if proved, cannot, by itself, warrant a decree of divorce and it must be further proved that it is of such a nature as the husband could not be expected to live with the wife.

38. We are of the view that the High Court in exercise of its appellate jurisdiction has rightly come to a different conclusion that the respondent is not suffering from the ailment of schizophrenia or incurable unsoundness of mind. Further, the High Court has rightly rejected the finding of the trial court which is based on Ext. B-10 and other documentary and oral evidence by applying the ratio laid down by this Court in *Ram Narain Gupta v. Rameshwari Gupta* [(1988) 4 SCC 247] referred to supra. A pertinent point to be taken into consideration is that the respondent had not only completed MBBS but also did a postgraduate diploma in Medicine and was continuously working as a Government Medical Officer and had she been suffering from any serious kind of mental disorder, particularly, acute type of schizophrenia, it would have been impossible for her to work in the said post. The appellant husband cannot simply abandon his wife because she is suffering from sickness. Therefore, the High Court allowed both the CMAs and dismissed OP No. 203 of 2000 filed by the appellant for divorce and allowed OP No. 1 of 1999 filed by the respondent for restitution of conjugal rights wherein the High Court granted decree of restitution of conjugal rights in favour of the respondent."

69. Now in the backdrop of the aforesaid settled position of law this Court is now adverting to the factual aspect of the instant case. From perusal of entire record, it is evident that the learned Family Judge has observed in the impugned judgment that the respondent since has thoroughly been cross-examined, which also states the mental status of the respondent-wife, meaning thereby, the learned Family Judge has also taken into consideration the implication of the Evidence Act.

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70. From the testimonies of the petitioner/appellant (PW-6), his sister (PW-1) and mother (PW-2) which has been referred hereinabove, it has not come that the respondent was incapable of giving valid consent of the marriage rather PW-1 has stated in her cross-examination that before marriage she went to see the respondent and also talked with her and it has not come in the evidence of the PW-1 that while she went to see the respondent and talked with her before marriage any abnormality in behaviour of the respondent was noticed by this witness.

71. It has also come in the evidence of the appellant that before marriage engagement party was also held and the respondent (RW-3) has stated that before marriage the petitioner has taken her thrice outside and talked with her in congenial environment. Thus, prior to the marriage there was a meeting also with the family members of the petitioner and the petitioner with the respondent and they talked with the respondent but nothing abnormal was noticed.

72. Further from the testimonies of doctor it is evident that there is contradictory statement has been given which would be evident from their statements. PW-3, Dr Subodh Kumar Psychologist has stated in his cross-examination that Schizophrenia patient cannot complete higher studies. Whereas, PW-4 has stated that Schizophrenia patient can pass graduation examination with higher marks. PW-5 has stated that in the prescription there is no 2025:JHHC:23892-DB description of symptoms of hallucination and depression and deorganized which was the character of Schizophrenia and has stated that all these symptoms can be cured by treatment.

73. Therefore, as per the evidences of doctor who have been examined by the appellant side, the alleged mental disease of the respondent was curable.

74. From the evidence of P.W. Nos. 3,4 & 5, it has not come that the respondent was incapable of giving valid consent due to unsoundness of mind and also from their statements it has also not come that the respondent is suffering from a mental disorder to such an extent to be unfit for marriage and procreation of children or has been subject to the recurrent attacks of insanity. Therefore, even on the basis of the findings of the aforesaid witness it is considered view of this Court that in the instant case the ingredients of Section 12(1) (b) are hereby not attracted.

75. The learned Family Court has taken into consideration that RW-4 Ph Dr Ashok Kumar Nag, is on the superior position than that of P.W.- Nos. 3, 4 & 5 because he was posted in RINPAS, Ranchi, which is the premier institution for treatment of mentally sick persons and from his evidence, his report, i.e. Certificate (Exhibit-A) clearly shows that the respondent is having no active psychopathology and his report is based on psychometry report.

76. Further, an attack of insanity where it amounts to mania or 2025:JHHC:23892-DB Schizophrenia, if it comes after marriage, will not furnish a ground for annulling the marriage under Section 12 of the Act. What is of importance, therefore, is the mental condition at the time of marriage which is the crucial time for determining the question of annulment. If insanity supervenes subsequent to marriage, it cannot be invalid. Similarly, where a party had suffered from

an occasional derangement of mind prior to marriage, but the mental state at the time of marriage was sound, such marriage cannot be avoided.

77. Thus, on the basis of discussion made hereinabove it is considered view of this Court that the appellant has miserably failed to brought the clinching and cogent evidence in order to prove the alleged Schizophrenia, of the respondent wife before the Court.

78. Further, the learned counsel for the appellant has submitted that the ground as available under Section 12(1)(c) can well be taken into consideration, since, the respondent is well-known to the case as per ingredient available in the aforesaid provision as contained, hence no prejudice will be caused.

79. This Court, in addition to the consideration so made as above will fail in its duty, if the argument which has been advanced on behalf of the appellant that the ground as available under Section 12(1)(c) can well be taken into consideration, since the parties are knowing the ingredient as available therein, hence no prejudice 2025:JHHC:23892-DB will be caused, but we are not in agreement with such submission, reason being, that if the contention of the appellant-husband will be accepted, then the same will amount to discarding the order passed by the learned Family Judge dated 20.02.2018, by which the amendment sought for insertion of a fresh issue pertaining to the ingredient available under Section 12(1)(c) has been rejected and even this will amount to go by from the order dated 05.02.2019 passed in W.P.(C) 1323 of 2018 by this Court in exercise of power conferred under Article 227 of the Constitution of India.

80. It needs to refer herein that against order dated 05.02.2019 passed in W.P.(C) 1323 of 2018 a SLP being Special Leave to Appeal (C) No.6857/2019 has been preferred but the same has been dismissed by the Hon'ble Apex Court vide order dated 25-03-2019 as such the said order has already attained finality.

81. This Court is further of the view that the amendment application would not have been filed, then on the issue the matter would have been different but that is not the case herein, since, the specific issue has been refused to be inserted in the plaint by rejection of the amendment application filed under Order 6 Rule 17 of the CPC.

82. Accordingly, on the basis of the discussion made hereinabove, issue as framed by this Court is decided against the appellant-husband and it is held that the learned Family Court had rightly not granted the decree in favour of the appellant husband on the ground of 2025:JHHC:23892-DB alleged schizophrenia under Section 12(1) (b) the Act 1955, as such same requires no interference by this Court.

83. This Court, on the basis of discussions made hereinabove, is of the view that the judgment dated 29.04.2019 passed by the learned Principal Judge, Family Court, Bokaro in Title (Matrimonial) Suit No. 239 of 2012 requires no interference by this Court.

84. Accordingly, the instant appeal fails and is dismissed.

85. Accordingly, the instant appeal being First Appeal No. 193 of 2019 stands dismissed.

86. Pending interlocutory application(s), if any, also stands disposed of.

(Sujit Narayan Prasad, J.)

I agree,

(Rajesh Kumar, J.)

(Rajesh Kumar, J.)

Samarth/ A.F.R.